

James Wald et al v. Travis Edward Martin et al
2023CUPP012195

Thursday – August 20, 2026

Judge Trentacosta, Dept. 42

Motions: (1) *In pro per* Cross-Complainant Travis Edward Martin’s Motion for Leave to File Second Amended Cross-Complaint (*opposed*)
(2) *In pro per* Defendant Travis Edward Martin’s Motion to Relate Cases (*opposed*)
(3) *In pro per* Defendant Donna Martin’s Motion to Remove Guardian Ad Litem (*opposed*)

Tentative: The Court intends to GRANT Cross-Complainant Travis Edward Martin’s Motion for Leave to File Second Amended Cross-Complaint. CCP §426.50. The request for judicial notice is granted, and the proposed Second Amended Cross-Complaint is deemed filed.

The Court intends to DENY Defendant Travis Edward Martin’s Motion to Relate Cases. The request is barred by application of judicial estoppel. The unopposed requests for judicial notice are granted as requested by the parties.

The Court intends to DENY Defendant Donna Martin’s Motion to Remove Guardian Ad Litem. The unopposed request for judicial notice is granted as requested. There is insufficient evidence that the appointed guardian ad litem, James Wald, has any conflict which prevents him from protecting P.W.’s interests in the litigation. Even if the Court were to consider the supplemental.

Discussion:

Motion for Leave to Amend

“The court may, in furtherance of justice, and on such terms as may be proper, allow a party to amend any pleading...” (Code Civ. Pro., § 473, subd. (a)(1).) Further, “[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.)

Judicial policy favors resolution of all disputed matters between the parties in the same lawsuit. Thus, the court's discretion will usually be exercised liberally to permit amendment of the pleadings. (See *Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; see also *Mabie v. Hyatt* (1998) 61 Cal.App.4th 581, 596 [“If discovery and investigation develop factual grounds justifying a timely amendment to a pleading, leave to amend must be liberally granted.”].) The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified: “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Sup.Ct.* (1959) 172 Cal.App.2d 527, 530; see also *Mabie v. Hyatt*, *supra*, 61 Cal.App.4th at p. 596.)

Courts are bound to apply a policy of great liberality in permitting amendments to the complaint “at any stage of the proceedings, up to and including trial,” absent prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761, 135.) If the plaintiff is the party seeking leave to amend (knowing the trial will be delayed), proximity to the trial date is not grounds for denial. As long as no prejudice to the defendant is shown, the liberal policy regarding amendment prevails and it is an abuse of discretion to refuse the amendment. (*Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 297 [no surprise to defendant because parties had conducted discovery on the issues sought to be raised by amendment].)

Here, Cross-Complainant Martin has provided the Court with his proposed Second Amended Cross-Complaint, asserting causes of action for 1) menace and duress, rescission and restitution, 2) recovery of money obtained by wrongful threats (civil extortion), 3) money had and received, and 4) conversion. The Motion is supported with a declaration, stating the effect of the amendment and the grounds to find it necessary and proper. As stated in Martin’s declaration in addition to restating the menacing-duress claim against Natalie Wald, the proposed SACC “adds three recovery counts arising from the same facts (recovery of money obtained by wrongful threats, money had and received, and conversion); it restores James Wald as a cross-defendant; and it alleges punitive damages against Natalie Wald only.” There is no trial date, no discovery has been taken, and he has not answered the FAC.

Even considering the delay in seeking leave to amend when the claims have admittedly been known to Martin for years, the Walds have not shown any meaningful prejudice or bad faith. There is no trial date and no indication that granting the Motion would unduly expand the scope of discovery or issues. In Reply, Martin argues that the Plaintiffs have not propounded any discovery in the three years since the case was filed anyway. Nor have the Walds shown that the proposed pleadings repeat arguments previously rejected by the court and/or are already raised in the pending demurrer. The original cross-complaint that went before the Court of Appeal on an appeal of an anti-SLAPP included claims of negligence, conspiracy, IIED and defamation. None of those claims are reasserted here. As for Walds’ argument that the Court ordered no other causes of action or new cross-defendants without the leave of court, does nothing to prevent Martin from seeking leave to amend now. The fact that this Motion will moot the pending August 24, 2026, demurrer to the FACC is no basis upon which to deny this Motion.

While the Walds attack the proposed SACC claiming that the new claims and parties fail for the same reasons stated in their pending demurrer, as noted in *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, the better practice is to permit amendment liberally and allow pleading challenges to be heard later; the merits-based attack need not be considered when deciding whether to grant leave to amend. The Court declines to address the futility of amendment now, but will consider those arguments if/when raised on demurrer to the SACC. GRANT.

Motion to Relate Cases

CRC, rule 3.300, subd. (a) defines a “related case” as:

A pending civil case is related to another pending civil case, [...], if the cases:

- (1) Involve the same parties and are based on the same or similar claims;

- (2) Arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact;
- (3) Involve claims against, title to, possession of, or damages to the same property; or
- (4) Are likely for other reasons to require substantial duplication of judicial resources if heard by different judges.

In subd. (h)(1) of the Rule regarding related cases pending in one superior court, the judicial action may be:

If all the related cases have been filed in one superior court, the court, on notice to all parties, may order that the cases, including probate and family law cases, be related and may assign them to a single judge or department. In a superior court where there is a master calendar, the presiding judge may order the cases related. In a court in which cases are assigned to a single judge or department, cases may be ordered related as follows:

- (A) Where all the cases listed in the notice are unlimited civil cases, or where all the cases listed in the notice are limited civil cases, the judge who has the earliest filed case must determine whether the cases must be ordered related and assigned to his or her department;
- (B) Where the cases listed in the notice include both unlimited and limited civil cases, the judge who has the earliest filed unlimited civil case must determine whether the cases should be ordered related and assigned to his or her department;
- (C) Where the cases listed in the notice contain a probate or family law case, the presiding judge or a judge designated by the presiding judge must determine whether the cases should be ordered related and, if so, to which judge or department they should be assigned;
- (D) In the event that any of the cases listed in the notice are not ordered related under (A), (B), or (C), any party in any of the cases listed in the notice may file a motion to have the cases related. The motion must be filed with the presiding judge or the judge designated by the presiding judge; and
- (E) If the procedures for relating pending cases under this rule do not apply, the procedures under Code of Civil Procedure section 1048 and rule 3.350 must be followed to consolidate cases pending in the same superior court.

In ruling on related cases, subd. (i), “The court, department, or judge issuing an order relating cases under this rule must either: (1) File a notice of the order in all pending cases and serve a copy of the notice on all parties listed in the Notice of Related Case; or (2) Direct counsel for a party to file the notice in all pending cases and serve a copy on all parties.” And, subd. (j), “If for any reason a case is not ordered related under this rule, that case will remain assigned to the court, judge, or department where it was pending at the time of the filing and service of the Notice of Related Case.”

Here, the Court agrees with the opposing parties that Martin is playing fast and loose by taking a position in this Motion that directly contradicts his own prior filings and arguments. While application of judicial estoppel is discretionary and extraordinary, The Court finds Martin estopped

from reversing positions he took when opposing Walds' notice of relation in the 2024 case (in July 2025), and when arguing that the sexual abuse allegations were irrelevant to the business case (see Martin's October 2025 MJOP). See *Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 183. Martin appear to be attempting to gain an advantage by taking one position in the 2024 case, and then when things did not go his way, later changing course and seeking advantage by taking an incompatible position now after the court already adopted his prior position. Martin argues that circumstances have changed which justify his current position, but that claim is not borne out by the evidence. Martin was happy enough to have the Court keep the actions separate and unrelated in July and October 2025 (which was after the first "development" articulated in the Reply papers, the August discovery responses). The timing of this Motion is suspect, with the six-day jury trial set for November 30, 2026 in Dept. 43, and the fact that the Motion was only brought after his multiple attempts to disqualify Judge Coats from the 2024 action failed. The other "developments" claimed in Reply took place in "early 2026" but Martin did not file this Motion until July 13, 2026. The fact that it was discovery in June 2026 that Entertainment Technologies paid family cell phone and auto insurance bills does not materially change the distinction between the cases, nor do the contained in the First Amended Complaint.

While Martin argues that the Court never adopted his position, and no judge had the authority to decide it, that is clearly belied by the record demonstrating that the cases were not in fact ever related or consolidated. The position advocated for by Martin was adopted when the Court declined to relate the cases. An order was not required to establish that the court adopted Martin's position. In order to maintain the integrity of the judicial system and to protect the Walds from their opponents' unfair strategies, the Court should find that Martin has taken two positions in judicial proceedings, was successful in asserting the first position in Dept. 43, and now stakes out a totally inconsistent position. There is no evidence that the first position was taken as a result of ignorance, fraud, or mistake. The Court is not inclined to disturb the status quo here, which has been to allow these actions to proceed unrelated and unconsolidated. The Court will DENY the Motion on grounds of judicial estoppel.

Motion to Remove GAL –

A minor who is a party in a lawsuit must appear " 'by a guardian ad litem appointed by the court in which the action or proceeding is pending....' (Code Civ. Proc., § 372, subd. (a).)" (*In re Emily R.* (2000) 80 Cal.App.4th 1344, 1356, 96 Cal.Rptr.2d 285; accord *In re Josiah Z.* (2005) 36 Cal.4th 664, 678, 31 Cal.Rptr.3d 472, 115 P.3d 1133.) If the minor is under 14 years old and is a plaintiff, "the appointment must be made before the summons is issued, upon the application of ... a *relative or friend* of the minor." (Code Civ. Proc., § 373, subd. (a), italics added.) The appointment may be made on an ex parte application. (*In re Marriage of Caballero* (1994) 27 Cal.App.4th 1139, 1149, 33 Cal.Rptr.2d 46.) A court has broad discretion in ruling on a guardian ad litem application. (*In re Emily R.*, *supra*, at p. 1356, 96 Cal.Rptr.2d 285.) " 'In the absence of a conflict of interest ..., the appointment is usually made on application only and involves little exercise of discretion.' " (*In re Marriage of Caballero*, *supra*, at p. 1149, 33 Cal.Rptr.2d 46.)

The purpose of a guardian ad litem is to protect the minor's interests in the litigation. (*Briggs v. Briggs* (1958) 160 Cal.App.2d 312, 319, 325 P.2d 219; see *In re Josiah Z.*, *supra*, 36 Cal.4th at p. 678, 31 Cal.Rptr.3d 472, 115 P.3d 1133; *In re Christina B.* (1993) 19 Cal.App.4th 1441, 1453, 23 Cal.Rptr.2d 918.) A guardian ad litem is not a party to the

action, but is the party's representative and is an officer of the court. (*In re Josiah Z.*, *supra*, 36 Cal.4th at p. 678, 31 Cal.Rptr.3d 472, 115 P.3d 1133; *In re Marriage of Caballero*, *supra*, 27 Cal.App.4th at p. 1149, 33 Cal.Rptr.2d 46.) The guardian ad litem “ ‘ ‘ ‘is like an agent with limited powers.’ ” ’ ” (*In re Marriage of Caballero*, *supra*, 27 Cal.App.4th at p. 1149, 33 Cal.Rptr.2d 46.) “ ‘[A] guardian ad litem's role is more than an attorney's but less than a party's. The guardian may make tactical and even fundamental decisions affecting the litigation but always with the interest of the guardian's charge in mind. Specifically, the guardian may not compromise fundamental rights, including the right to trial, without some countervailing and significant benefit.’ ” (*Ibid.*; accord *In re Josiah Z.*, *supra*, 36 Cal.4th at p. 678, 31 Cal.Rptr.3d 472, 115 P.3d 1133.) Thus, when considering the appropriate guardian ad litem for a minor plaintiff in a civil lawsuit, the central issue is the appropriate protection of the minor's legal right to recover damages or other requested relief.

(*Williams v. Superior Court* (2007) 147 Cal.App.4th 36, 46–47.)

Here, like Travis before her, Donna¹ has not shown any legitimate basis to remove James as GAL for his daughter, P.W. As the Court similarly noted regarding Travis Martin, Donna presumes that her allegations in this case are established by the trial transcript and discovery responses; however, the evidence does not establish, or sufficiently suggest, that the Walds have a conflict of interest in connection with the pursuit of this action. The evidence relied upon by Donna relates to the underlying criminal proceedings, and not this civil litigation or the actions taken by James thereafter. The statements from James regarding his action/inaction in the underlying molestation does not establish a conflict now in connection with P.W.'s interest in this litigation. The evidence establishing him as an appropriate GAL were established when the application was granted. And there is no evidence of a disqualifying adverse event, and any potential conflict in connection with other unpled allegations is entirely speculative at this point. The Walds have not been shown to have taken a position adverse to P.W.'s interests in this litigation whatsoever. Donna argues that the Walds have failed to present evidence, but the Walds are not required to do so. The initial burden to establish entitlement to the relief requested lies with moving-party Donna and she fails to show that James is not appropriately protecting P.W.'s legal right to recover damages from Defendants Martin and Donna. No immunity is being granted to James by allowing him to serve as GAL.

The Tentative is to DENY the motion to remove GAL.

¹ The Defendants have the same last name, so the court is using their first names here to distinguish between their various pleadings and motions. No disrespect intended.)